



## POLICE DEPARTMENT

November 1, 2024

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202304448 (Incident Date: May 10, 2023) regarding Police Officer Nicholas Guele, Tax No. 950540 (DADS No. 2024-31774)

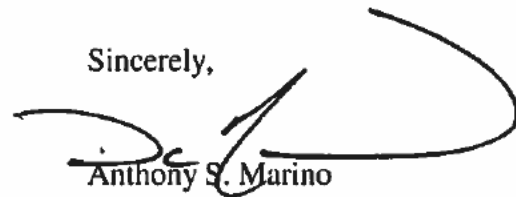
Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202304448, pertaining to Police Officer Guele. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Guele would be detrimental to the Police Department's disciplinary process.

In this case, the Police Commissioner has determined no disciplinary action should be issued for the alleged misconduct. Police Officer Guele did not make the decision to issue the complainant a summons for disorderly conduct. Police Officer Guele did not write the summons, nor did he interact with the complainant other than providing his name and shield number upon request. Body worn camera footage depicts Police Officer Guele recommending a traffic violations bureau summons be issued, not a disorderly conduct summons. Police Officer Guele's partner issued the complainant a summons for disorderly conduct. Furthermore, Police Officer Guele is not a supervisor who directed this type of summons to be issued.

Police Officer Guele has been a member of the New York City Police Department for over thirteen (13) years and has no prior substantiated CCRB allegations and no formal Department disciplinary history. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officer Guele for the alleged misconduct.

Sincerely,



Anthony S. Marino  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office

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ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
100 CHURCH STREET 10th FLOOR  
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235  
[www.nyc.gov/ccrb](http://www.nyc.gov/ccrb)



November 7, 2024

The Honorable Thomas G. Donlon  
Interim Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: CCRB Case No. 202304448 (Incident Date: May 10, 2023) regarding Police Officer Nicholas Guele, Tax No. 950540 (DADS No. 2024-31774)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 1, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you have determined that no disciplinary actions should be issued against Officer Guele. Deputy Chief Marino stated that you reached this determination after concluding that it was not Officer Guele who made the decision to issue a summons for disorderly conduct to the complainant.

The CCRB disagrees with this determination. Body-worn camera captured Officer Guele and his partner, Officer Alleyne, discussing whether to issue a summons to the complainant. After Officer Alleyne states, “Let’s do a discon, I’ll do a C,” Officer Guele hands a summons to his partner, which Officer Alleyne then begins to fill out. Officer Alleyne then states that the complainant has to receive something after what she put them through, to which Officer Guele replies, “We’re gonna give her something.” Although it was Officer Alleyne who filled out the summons and gave it to the complainant, the decision to issue the unlawful summons was clearly a joint decision made by both Officer Guele and his partner.

Based upon the foregoing, it is requested that you permit the CCRB to continue the disciplinary process against Officer Guele. We request that the Charges and Specifications be served on Officer Guele.

Respectfully submitted,

*Andre Applewhite*

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p.p., Andre Applewhite, Chief Prosecutor for  
Jonathan Darche, Executive Director  
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

November 8, 2024

Jonathan Darche  
Executive Director  
New York City Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

Re: CCRB Case No. 202304448 (Incident Date: May 10, 2023) regarding Police Officer Nicholas Guele, Tax No. 950540 (DADS No. 2024-31774)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 7, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Nicholas Guele, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Guele for the reasons expressed in my November 1, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed against Police Officer Guele for the alleged misconduct.

Sincerely,

Anthony S. Marino  
Deputy Chief  
Commanding Officer  
Police Commissioner's Office